



SPONSOR: Rep. Shupe & Sen. Buckson
Reps. Hilovsky, Morris, Yearick; Sen. Richardson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 317

AN ACT TO AMEND TITLE 15 OF THE DELAWARE CODE RELATING TO AUTOMATIC VOTER
REGISTRATION VERIFICATION AND ONGOING ELIGIBILITY REVIEW.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 20, Title 15 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 2050B. Automatic Voter Registration Eligibility Verification and Audit

4 (a) Purpose and Intent.

5 The purpose and intent of this section is to ensure integrity, accuracy, and lawful administration of voter
6 registration records generated through the automatic voter registration system established under this title.

7 (b) Retroactive Audit Required.

8 The Department of Elections, in coordination with the Division of Motor Vehicles, and any other state agency that
9 administers automatic voter registration, shall conduct a comprehensive review of all voter registrations created through
10 automatic voter registration processes from January 1, 2021, through the effective date of this Act.

11 (c) Mandatory Eligibility Verification.

12 For each voter registration reviewed under subsection (b) of this section, the Department of Elections shall verify,
13 to the extent permitted by law, that the individual meets the eligibility requirements under this title, including:

14 (1) United States citizenship;

15 (2) Delaware residency;

16 (3) Age eligibility;

17 (4) Non-disqualification due to felony conviction status;

18 (5) Accuracy of identifying information transmitted from the Division of Motor Vehicles.

19 (d) Ongoing Verification for New Registrations Required.

20 (1) The Department of Elections, in coordination with the Division of Motor Vehicles, shall establish
21 procedures to verify eligibility criteria described in subsection (c) of this section for all future voter registrations

generated through automatic voter registration at the time the registration is created or as soon as practicable thereafter.

(2) No automatic voter registration record may be designated as active until eligibility verification procedures required under this subsection have been completed, except as required to comply with federal law.

(3) Eligibility verification under this subsection shall occur on a continuous and ongoing basis for all new records transmitted through automatic voter registration systems.

(e) Date Matching and Verification Methods.

The Department of Elections may utilize available state and federal databases for verification purposes, including but not limited to:

(1) Division of Motor Vehicles' records;

(2) Social Security Administration verification systems;

(3) Department of Homeland Security lawful presence verification systems;

(4) State residency databases;

(5) Interstate voter registration cross-check systems;

(6) Any other federal or state presence verification systems available to the Department of Elections.

(f) Correction of Records.

If the Department of Elections determines that a voter registration created through automatic voter registration does not meet eligibility requirements:

(1) The Department shall initiate procedures under existing law to correct or remove the registration.

(2) The individual shall be notified and provided an opportunity to confirm or update eligibility information before removal, consistent with federal law including the National Voter Registration Act.

(g) Reporting Requirements.

The Department of Elections shall submit a report to the Governor, the President Pro Tempore of the Senate, the Speaker of the House of Representatives, and the Director of the Division of Legislative Services no later than 12 months after the effective date of this Act containing:

(1) The total number of registrations reviewed;

(2) The number of records requiring correction;

(3) The number of registrations removed;

(4) The number of registrations updated;

(5) Identified system weaknesses or recommendations;

52 (6) Any evidence of improper registration;

53 (7) Where there is any evidence of improper registration, a description of what corrective action has or
54 will be taken.

55 The report shall be a public document.

56 (h) Ongoing Compliance Reports.

57 Beginning 1 year after completion of the audit required under subsection (b), and annually thereafter, the
58 Department of Elections shall submit a report summarizing:

59 (1) The number of automatic voter registrations processed;

60 (2) The number verified through eligibility checks;

61 (3) Any discrepancies identified;

62 (4) Correction actions taken.

63 (i) Regulations.

64 The Department of Elections may promulgate regulations necessary to implement this section.

SYNOPSIS

This Act requires the Department of Elections, in coordination with the Division of Motor Vehicles and any other state agency that administers automatic voter registration, to conduct a comprehensive audit of all voter registrations created through Delaware's automatic voter registration system since 2021 to ensure that individuals meet eligibility requirements including citizenship, residency, and age. The Act also requires mandatory eligibility verification for all future automatic voter registrations on an ongoing basis and establishes reporting requirements to ensure transparency and accountability.